

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                   |                                             |                           |                                                        |                                    |                                 |
|---------------------------------------------------|---------------------------------------------|---------------------------|--------------------------------------------------------|------------------------------------|---------------------------------|
| Investigator:<br>Filip Woroniecki                 | Team:<br>Squad #07                          | CCRB Case #:<br>201708447 | <input type="checkbox"/> Force                         | <input type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.   |
|                                                   |                                             |                           | <input checked="" type="checkbox"/> Abuse              | <input type="checkbox"/> O.L.      | <input type="checkbox"/> Injury |
| Incident Date(s)<br>Friday, 10/06/2017 8:30 PM    | Location of Incident:<br>88-08 183rd Street | 18 Mo. SOL<br>4/6/2019    | Precinct:<br>103                                       |                                    |                                 |
| Date/Time CV Reported<br>Fri, 10/06/2017 11:35 PM | CV Reported At:<br>IAB                      | How CV Reported:<br>Phone | Date/Time Received at CCRB<br>Thu, 10/12/2017 11:15 AM |                                    |                                 |

| Complainant/Victim | Type | Home Address |
|--------------------|------|--------------|
|                    |      |              |

| Subject Officer(s)  | Shield | TaxID  | Command |
|---------------------|--------|--------|---------|
| 1. POM Lance Walter | 30215  | 951417 | 103 PCT |
| 2. POM Sean Markey  | 08904  | 960874 | 103 PCT |

| Officer(s)           | Allegation                                                                                      | Investigator Recommendation |
|----------------------|-------------------------------------------------------------------------------------------------|-----------------------------|
| A . POM Sean Markey  | Abuse: Police Officer Sean Markey refused to provide his name and shield number to § 87(2)(b).  | A . Complaint Withdrawn     |
| B . POM Lance Walter | Abuse: Police Officer Lance Walter refused to provide his name and shield number to § 87(2)(b). | B . Complaint Withdrawn     |

### Case Summary

On October 6, 2017, § 87(2)(b) filed this complaint with the Internal Affairs Bureau (IAB). The complaint generated log number 17-38883 and was received at the CCRB on October 12, 2017.

On October 18, 2017, contact with § 87(2)(b) was established via phone. § 87(2)(b) confirmed his identity, provided a new home address and stated that he was not interested in pursuing this complaint. § 87(2)(b) further explained that at the time of the incident, he had "a few beers" and that he was no longer interested in investigating the incident. He confirmed that his decision was voluntary and that no one at the CCRB or the NYPD coerced him into withdrawing the complaint. Investigative Manager Diana Townsend reviewed the recorded withdrawal statement; located in IA # 7 beginning at 02:08 minutes on the recording, and confirmed that it adhered to the agency's policy. A withdrawal letter was also sent to § 87(2)(b) and will be added to the case file upon receipt.

§ 87(2)(g), it is recommended that this case be closed as **complaint withdrawn**.

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Squad:

|               |                 |                         |                   |
|---------------|-----------------|-------------------------|-------------------|
| Investigator: | _____           | <u>FILIP WORONIECKI</u> | <u>10/18/2017</u> |
|               | Signature       | Print                   | Date              |
| Squad Leader: | _____           | <u>I.M. TOWNSEND</u>    | _____             |
|               | Title/Signature | Print                   | Date              |
| Reviewer:     | _____           | _____                   | _____             |
|               | Title/Signature | Print                   | Date              |